

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX NO.:

-----X
Sean Jouavel,

Plaintiff,

Plaintiff designates Kings
County for trial.

Date of Filing: 04/08/2020

Basis of venue is the
Plaintiff's residence

- against-

SUMMONS

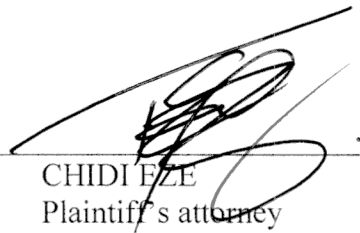
THE CITY OF NEW YORK,
and P.O. "JOHN DOES"
1 thru 3, of the 77th Precinct

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the within complaint in this action by filing your Answer at the Kings County Supreme Court Clerk's office located at 360 Adam Street, Brooklyn New York 11201, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint annexed herewith.

Dated: Brooklyn, New York
April 8, 2020


CHIDI EZE

Plaintiff's attorney

255 Livingston Street, 3rd Floor
Brooklyn, NY 11217

Defendants' Address:

- 1) Corporation Counsel, City of New York, 100 Church Street, New York, NY 10007

NOTE: The law provides that: (a) If this summons is served by its delivery to you personally within the State of New York, you must appear and answer within TWENTY (20) days after such service; or (b) If this summons is served by any means other than personally delivery to you within the State of New York, you must appear and answer within THIRTY (30) days after proof of the service thereof is filed with the Clerk of the Court.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----x Index No.:
Sean Jouavel,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK,
P.O. "JOHN DOES"
1 thru 3, of the 77th Precinct,

Defendants.

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Plaintiff, by his attorney, Chidi Eze, Esq., complaining of the City of New York, and Police Officers John Doe and Jane Doe 1 'through' 3, upon information and belief, alleges the following:

NATURE OF ACTION AND JURISDICTION.

1. This is an action at law to redress the deprivation, under color of statute, ordinance, regulation, custom or usage, by Defendants of the rights, privileges and immunities secured to Plaintiff under Article 1 Section 12 of the State of New York Constitution and New York State Common Law and arising under the First, Fourth, Fifth and Fourteenth Amendments to the Constitution, and by 42 U.S.C. §1983 [and §1985].

2. Jurisdiction is specifically conferred on this court by the Constitution of the United States.

3. Venue is proper because plaintiff resides in the County of Kings, New York.

PARTIES.

4. During all times relevant and material to this Complaint, Plaintiff was, and still is a United States Citizen, residing in Brooklyn, City and State of New York.

5. During all times relevant and material to this case, Defendant City of New York was and still is a municipal corporation, incorporated and existing under the laws of the State of New York.

6. During all times relevant and material to this case, Defendant Police Officers were employees of Defendant City of New York through its Police Department.

7. During all times relevant and material to this case, the actions of the defendant officers were part of the custom, practice, usage, regulation and/or direction of Defendant City of New York through their New York City Police Department (hereinafter NYPD), and as such Defendant City of New York is responsible for the actions of the officers. Defendant City of New York is further responsible for the actions of these individuals Defendants' under the principal agent/*respondeat superior* rule.

FULFILMENT OF ADMINISTRATIVE PREREQUISITES.

8. All conditions precedent for the filing of this action have been complied with: on or about April 27, 2019 written Notice of Claim, sworn to by Plaintiff, was served upon Defendant City of New York to the person designated by law as one to whom a summons against Defendant City of New York may be delivered in an action in the District Court. Plaintiff was assigned the Claim Number 2019PI012202.

9. At least thirty days have elapsed since the service of the Notices of Claim and their

Amended versions, and an adjustment or payment of the claims have been neglected or refused by Defendants.

FACTS COMMON TO ALL CAUSES OF ACTION

10. The claim arose out of the incidents that transpired on October 31, 2018, at approximately 10:00 A.M., at 538 East 52nd Street, Brooklyn New York, County of Kings, City and State of New York.

11. February 1, 2019, at approximately 10:30 P.M., while Plaintiff was a passenger in a vehicle riding along Rochester Avenue at its intersection with Montgomery Street, Brooklyn, County of Kings, City and State of New York.

12. Plaintiff was a passenger in a vehicle driven by an individual by the name of Kadis Mathurin. There were 2 or 3 other passenger's at the back seat. While said vehicle was driving along Rochester Avenue, at its intersection with Montgomery Street, Brooklyn, County of Kings, City and State of New York, an unmarked police vehicle pulled the vehicle over. Upon pulling over, three plain clothed officers, all male, approached Claimant's vehicle. The driver was asked for Insurance Registration and License. Plaintiff is not sure if the driver produced these documents, but remembers that the driver was asked to step out of the vehicle, which he did. About 5 minutes later, after talking with the driver, the officers asked Plaintiff and the other passengers to step out of the vehicle. As Plaintiff stepped out of the vehicle, he was immediately arrested and handcuffed. Plaintiff and the rest of the vehicle occupants were taken to the 77th Precinct where they were finger printed and processed, and detained.

13. Plaintiff was transported to Kings County Central Bookings in Brooklyn at approximately 2 PM the following day, being February 2, 2019.

14. At about 10:30 P.M. same day, Plaintiff was released from Kings County Central Bookings, without seeing a judge. Plaintiff was either charged and the charges dropped before he appeared before a judge or the DA declined to prosecute. Either way, Plaintiff was false arrested and imprisoned for over 24 hours.

15. In light of the foregoing, Plaintiff has been damaged by the actions of the City of New York and its agents, as he was made to endure a degrading and humiliating body cavity search, harassed, was arrested and imprisoned for an amount of time exceeding 24 hours without probable cause, lost respect and dignity before family and friends, physically and emotionally damaged, suffered reputation injuries, psychological and emotional distress, some or all of which may be permanent.

16. P.O. John Doe and Jane Doe 1 'through' 3 acted under pretense and color of state law, in their individual and official capacities and within the scope of their respective employment as NYPD officers. The conduct of the defendant officers complained of herein was beyond the scope of their jurisdiction, without legal authority, and in direct abuse of their authority.

17. Defendant City of New York is further responsible for the actions of the individual Defendants' under the principal agent/*respondeat superior* rule and under municipal liable pursuant to section 1983.

AND AS FOR A FIRST CAUSE OF ACTION

18. Plaintiff repeats and re-alleges paragraphs 1 through 17 as if each paragraph is repeated verbatim herein.

19. In violation of Article 1 Section 12 of the New York State Constitution, and New York State Common Law, the defendant police officers falsely arrested and imprisoned Plaintiff

for approximately 24 hours without probable cause, deprived him of the rights, remedies, privileges, and immunities guaranteed to him under said law.

20. In addition, the defendant officers conspire to deny plaintiff his Constitutional rights, secured to him by Article 1 Section 12 of the New York State Constitution, and took several overt steps in furtherance of the conspiracy as set forth above.

21. Plaintiff was denied freedom and liberty, and therefore suffered emotional and mental distress as a result. Plaintiff claims compensatory damages in the amount of \$2,000,000 each, for the violation of his rights under Common Law and for emotional and mental distress. In addition, because the defendant police officers acted with malice and intentional disregard for plaintiff's Constitutional rights when they arrested and imprisoned him, Plaintiff seeks \$400,000 each, in punitive damages.

AND AS FOR A SECOND CAUSE OF ACTION

22. Plaintiff repeats and re-alleges paragraphs 1 through 21 as if each paragraph is repeated verbatim herein.

23. The Defendant police officers were acting as agents' of the City of New York when they arrested and detained Plaintiff without probable cause. Therefore, under the principal agent/*respondeat superior* rule, the City of New York is jointly and severally liable with the defendant police officers for the compensatory damages sustained by plaintiff as a result of the actions of these police officers.

24. Plaintiff seeks compensatory damages in the amount of \$2,000,000, for the violation of his rights, resulting in severe physical, emotional and mental distress. In addition, because the individual Defendants acted with malice and intentional disregard for Plaintiff's

Constitutional rights, plaintiff seeks additional \$400,000 in punitive damages against the individual defendants.

AND AS FOR A THIRD CAUSE OF ACTION

25. Plaintiff repeats and re-alleges paragraphs 1 through 24 as if each paragraph is repeated verbatim herein.

26. The defendant police officers arrested and imprisoned Plaintiff without probable cause, without a warrant and with malice and intentional disregard for his constitutional rights. The Defendants, acting under color of State Law, violated Plaintiff's right to be free from unreasonable seizure, secured under the Fourth and Fourteenth Amendments to the Constitution, and his right not to be deprived of liberty without due process of law, secured under the Fifth and Fourteenth Amendments. By denying Plaintiff his Constitutional rights under color of State Law, the Defendants violated 42 U.S.C. §1983. In addition, the defendant officers conspire to deny plaintiff his Constitutional rights secured to him by 42 U.S.C. §1983 [1985], and took several overt steps in furtherance of the conspiracy as set forth above.

27. As a result of the seizure of his person, Plaintiff was denied his freedom and liberty and suffered emotional and mental distress thereof. Plaintiff seeks compensatory damages in the amount of \$2,000,000. In addition, because the defendant police officers acted with malice and intentional disregard for his Constitutional rights when they arrested and imprisoned him, Plaintiff seeks \$400,000 in punitive damages.

AND AS FOR A FOURTH CAUSE OF ACTION

28. Plaintiff repeats and re-alleges paragraphs 1 through 27 as if each paragraph is

repeated verbatim herein.

29. The defendant police officers were acting as agents of the City of New York when they carried out the actions complained of herein. The defendant Police Officers' violations of the Plaintiff's Constitutional and Federal Law rights, as complained of herein, were carried out under the unlawful and injurious policies, customs, and practices of the City of New York and its Police Department, therefore, the City of New York is jointly and severally liable with the defendant police officers for the compensatory damages sustained by Plaintiff herein.

30. Plaintiff seeks compensatory damages in the amount of \$2,000,000 for the violation of his rights, which resulted in physical, emotional and mental distress. In addition, because the Defendants acted with malice and intentional disregard for his Constitutional rights, Plaintiff seeks \$400,000 in punitive damages against the individual officers jointly and severally.

WHEREFORE, Plaintiff prays the Court for judgment as follows for each Cause of Action:

- i. \$2,000,000 in compensatory damages against all the defendants, jointly and severally;
- ii. \$400,000 in punitive damages against the individual defendant police officers,

jointly and severally;

iii. Attorney's fees, plus the costs and disbursements of these actions against all

Defendants, jointly and severally;

iv. Such other relief as the Court may deem just, proper and equitable.

Dated: Brooklyn, New York
April 8, 2020

By:


CHIDI EZE
Attorney for Plaintiff
255 Livingston Street, 3rd Floor
Brooklyn, NY 11217
(718) 643-8800

VERIFICATION

STATE OF NEW YORK)
COUNTY OF KINGS) ss:

SEAN JOUAVEL, deposes and say:

I am the PLAINTIFF in this case. I have read the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

Sign Sean Jouavel
SEAN JOUAVEL

Sworn to before me this
8th Day of April 2020

NOTARY PUBLIC

CHIDI EZE, ESQ.
Notary Public of New York
No. 02EZ6097235
Qualified Kings County
Commission Expires Aug. 18, 2023